



Notification Waiver Determination

Apollo – Bayer Asset Management

Acquisition	AP Emerald (Luxembourg) S.à r.l. (AP Emerald) and Apollo Capital Management, L.P. applied for a notification waiver in respect of the proposed acquisition by AP Emerald of 46% of the share capital and voting rights of Bayer Asset Management B.V. from Bayer Global Investments B.V., as described in the transaction documents provided as part of the application (the Acquisition). Bayer Global Investments B.V. will retain a majority share in Bayer Asset Management B.V. At closing of the Acquisition, Bayer Asset Management B.V. will indirectly hold 100% of the shares in Bayer Oy.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 August 2026

Parties to the Acquisition	AP Emerald is a special purpose vehicle which is indirectly managed and advised by affiliates of Apollo Capital Management, L.P., a wholly-owned indirect subsidiary of Apollo Global Management, Inc. (together with its indirect subsidiaries managing the investment fund, Apollo). Apollo is a global alternative asset manager headquartered in New York. Bayer Asset Management B.V. is a newly incorporated entity wholly owned by Bayer Global Investments B.V. with the sole purpose of indirectly holding all shares in Bayer Oy. Bayer Asset Management B.V. is ultimately controlled by Bayer Aktiengesellschaft (together with its subsidiaries, Bayer). Bayer is a globally active life science company with its headquarters in Leverkusen, Germany. Bayer conducts its business in three divisions: pharmaceuticals, consumer health and crop science. Bayer Oy, which is headquartered in Turku, Finland, produces long-acting reversible contraceptives.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:

	a. there is no horizontal overlap between Apollo (and its connected entities) and Bayer Oy in the supply of long-acting reversible contraceptives b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of products or services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act